

Tentative Rulings for July 22, 2026 Department 7

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
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- Meeting Number: **161 766 6465**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

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1.

CASE #	CASE NAME	HEARING NAME
CVRI2400857	A. vs MIMMS	MOTION FOR PROTECTIVE ORDER

Tentative Ruling: Defendant Universal Protection Service, LP's Motion for Protective Order is denied.

Plaintiff's request for Sanctions is granted in the amount of \$1,050, payable within 30 days.

To compel the deposition of a party to an action or its officer, director, managing agent, or employee, the deposing party need only serve a notice in compliance with Code of Civil Procedure section 2025.240. (C.C.P., § 2025.280(a).) Nothing further is needed. Where the deponent is a corporation, "the deposition notice shall describe with reasonable particularity the matters on which examination is requested." (C.C.P., § 2025.230.) The corporation must then designate and produce at the deposition the person who is most qualified to testify as to the matters described. (*Ibid.*)

C.C.P. § 2025.420 provides that "the court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. (C.C.P., § 2025.420(b); see *Nativi v. Deutsche Bank Nat'l Trust Co.* (2014) 223 Cal.App.4th 261, 316—§ 2025.420(b) provides "*nonexclusive* list of permissible directions that may be included in a protective order" [emphasis in original].) Generally, this requires a showing that the burdens involved in the deposition proceeding clearly outweigh whatever benefits are sought to be obtained thereby. (See C.C.P., § 2017.020(a).) The burden is on the moving party to establish "good cause" for the requested relief. (C.C.P., § 2025.420(b); see *Emerson Elec. Co. v. Superior Court* (1976) 16 Cal.4th 1101, 1110; *Nativi, supra*, 223 Cal.App.4th at 318.) Ultimately the granting or denial of a protective order rests in the judge's sound discretion. (*Nativi, supra*, 223 Cal.App.4th at 316-317.) If complete relief is denied, the court may nevertheless impose terms or conditions upon which the deposition may proceed. (C.C.P., § 2025.420(g).) Courts have discretion in issuing, approving, or modifying such protective orders. (*Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 316; see also *Coalition Against Police Abuse v. Superior Court* (1985) 170 Cal.App.3d 888, 904.)

The court may grant a protective order only upon a showing of good cause. (C.C.P., § 2025.420(b).) Good cause requires demonstrating that the discovery sought would cause "unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (*Id.*) The burden of establishing good cause rests on the moving party. Defendant contends good cause exists because: Plaintiff seeks an impermissible "second bite of the apple" by re-deposing Allied's PMK on topics already covered; the categories for the second deposition are "substantively the same" as the first; and Allied already produced a PMK who provided 5.5 hours of testimony and concluded the deposition without any representation that Plaintiff intended to leave it open.

Below is a comparison of the topics between the two deposition notices:

Second PMK Deposition Notice Topics	First PMK Deposition Notice Topics	Classification	Analysis
1. 2019 Termination - Specific conduct/policy violation that led to Mimms's September 2019 termination; identity of decision-maker(s); documentation; policy provision(s) violated; "not eligible for rehire" designation criteria	4. Information related to the hiring, background, and qualifications of Defendant Mimms	New/expanded	First deposition topic addressed hiring and qualifications broadly. Second topic narrows to the <i>2019 termination specifically</i> , a distinct event. Wells disclaimed knowledge: "not privy to that information," directed to Kiet Phan. Termination is conceptually distinct from hiring/background
2. WinTeam System - Configuration 2019-2022; capability to flag "not eligible for rehire"; how flags associated with employee records; procedures to access flags; whether Mimms's 2019 designation entered/maintained; G4S records integration; why WinTeam not queried before Mimms continued as employee	3. & 4. Policies/procedures regarding hiring, training, supervision, conduct; Information re: hiring, background, qualifications of Mimms	New	First deposition topics covered general hiring policies; WinTeam is a <i>specific database system</i> . No testimony about WinTeam appears in record. Wells testified he was "unaware of the exact background process" used during G4S acquisition.
3. G4S Acquisition Protocols - Procedures to evaluate/screen/background-check G4S employees after October 2021 acquisition; whether protocols required screening against Allied's own database; decision-making for Canyon Lake account; communications about Mimms; who approved Mimms	3. & 4. Policies/procedures regarding hiring, training, supervision, conduct; Information re: hiring, background, qualifications of Mimms	New	First topics addressed general hiring policies, not the <i>specific acquisition integration</i> . Wells testified he "was unaware of the exact background process" Applied used when it acquired G4S and merely believed Allied "just took the G4S background" without

continuing without querying Allied's records.			knowing how it was reviewed.
4. Sterling Infosystems Background Check - Scope, databases queried, criteria; instructions given to Sterling; whether Allied could request search of own employment database; reason Allied's database not included; communications with Sterling.	4. Information related to the hiring, background, and qualifications of Defendant Mimms	New	"Sterling Infosystems" does not appear once in October 15, 2025 transcript. Wells testified he was "not involved" in whatever background check was performed. Topic 4 from first deposition is broad; Sterling Infosystems inquiry is <i>specific vendor inquiry</i> .
5. Six Policy Violations - Conduct underlying each; whether any involved inappropriate conduct with residents; who approved/reviewed each; whether Level 3 triggered mandatory client notification; reason Canyon Lake not notified of violations; documents re: whether to remove Mimms from account.	8, 9: Disciplinary actions involving Defendant Mimms; Complaints or allegations of misconduct involving Defendant Mimms	Expanded	Both depositions address disciplinary violations. Plaintiff acknowledges "some overlap" but contends specific sub-questions were never explored: whether escalation to Level 3 triggered <i>mandatory client notification obligation</i> and <i>why Canyon Lake was never informed</i> . Defendant provided extensive testimony on disciplinary records, but disputed whether notification obligations were covered.
6. Internal Communications re: Continuing Mimms on Account - Communications about removing Mimms; notifying Canyon Lake; identity of persons with knowledge of violations while Mimms remained assigned; nine-page email chain from Wells deposition (authors,	11. Communication s regarding Defendant Mimms' conduct or employment.	Expanded	Both address communications. Second topic narrows to <i>specific decision-making communications about keeping Mimms assigned</i> and identifies a <i>specific nine-page email chain</i> introduced at first deposition (Exhibit 3) but never

recipients, dates, subject, status).			explored. Wells testified he had never seen “this exact e-mail” and could not confirm its accuracy.
7. Post-Arrest Internal Review - Investigation, root cause analysis, post-incident review, corrective action after Mimms's August 2023 arrest; participants; findings; policy changes made; whether similar review conducted in connection with litigation.	2, 7: Events leading up to and directly after incidents; Response to and investigation of incident involving Plaintiff.	New	Post-arrest internal review (August 2023, <i>after</i> incidents) is temporally and conceptually distinct from investigation of the <i>incidents themselves involving Plaintiff</i> . Allied does not contend this was addressed.
8. Insurance Coverage Decisions - Communications with carriers re: coverage; tender letters; reservation of rights letters; communications with Indian Harbor (Policy RES943799402) and excess carriers; coverage opinions/allocation analyses; whether any carrier disclaimed coverage	12. Insurance coverage in place during Defendant Mimms' employment that may apply to the incident.	Expanded, but no testimony provided.	Both address insurance. Wells testified this “would have to be asked back to my corporate office,” identifying Kiet Phan, and provided “zero substantive testimony.” Second topic seeks <i>specific coverage decisions and communications</i> , not just existence of coverage. Full insurance tower provided in written discovery.
9. Policies Governing Officer Interaction with Minors - Policies/procedures/training 2019-2022 re: security officer interaction with minor residents; prohibition on personal relationships; reporting obligations; training provided; whether Canyon Lake manual	3, 14: Policies/procedures regarding hiring, training, supervision, conduct of security staff; Policies/procedures concerning safety and protection of minors.	Expanded	Both depositions address policies on minors. Plaintiff acknowledges “some overlap” but contends specific sub-questions never explored, including <i>mandatory reporting obligations</i> and whether the <i>Canyon Lake-specific manual</i> addressed minor interaction.

addressed interaction with minors.			Second topic is more granular.
10. Post-Termination Access - Knowledge that Mimms continued accessing Canyon Lake after May 2022 termination; whether Allied aware Mimms remained in Dwelly Live guest system; whether Allied communicated with Canyon Lake about post-termination access; whether any employee observed/was informed Mimms continued accessing; documents reflecting Allied's knowledge.	2, 10: Events leading up to and directly after incidents; Surveillance footage, security logs, electronic records related to Mimms' activities.	New	Mimms's <i>post-termination access through Dwelly Live system</i> was never raised at prior deposition. While Wells testified generally about guest logs, the specific issue of Allied's knowledge about post-termination access via a <i>resident-added guest entry</i> is distinct.

The topics are not entirely the same. Moreover, the showing required is not merely that topics overlap conceptually, but that the discovery would impose an unreasonable burden incommensurate with the result sought. Here, Allied designated Mr. Wells, who by his own testimony lacked knowledge on multiple noticed topics and deferred to others, precisely the “buck-passing” and “‘I don’t know’ answers” that C.C.P., § 2025.230 providing for designation of persons most knowledgeable was designed to eliminate. (*Maldonado v. Superior Court* (2002) 94 Cal.App.4th 1390, 1395.) The proposed deposition is a routine PMK deposition on discrete corporate topics. Defendant offers no evidence that producing a knowledgeable witness would impose “unwarranted annoyance, embarrassment, or oppression, or undue burden and expense” beyond those inherent in any deposition. Defendant has failed to carry its burden of demonstrating good cause for a protective order.

SANCTIONS

The court “shall” impose a monetary sanction against whichever party loses on the motion for protective order unless it finds that party acted “with substantial justification” or other circumstances render the sanction “unjust.” (C.C.P., § 2025.420(h).) California authority describes “substantial justification” in this context as a position that is “well grounded in both law and fact.” (*Diepenbrock v. Brown* (2012) 208 Cal.App.4th 743, 747.) Allied’s motion is not successful, and it does not appear that it acted with substantial justification given the topics that never fully appeared in the first deposition and Mr. Wells expressly deferred on some topics. Plaintiff requested \$1,050.00. That amount is reasonable and supported by counsel’s declaration.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2503734	ALFRED vs STRATE	MOTION TO SET ASIDE DISMISSAL

Tentative Ruling: Plaintiff Arthur Alfred's UNOPPOSED Motion to Set Aside Dismissal is granted.

Trial Setting Conference is set for 9/23/26.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506013	SAID vs EXPEDIA INC.	MOTION TO VACATE DEFAULT JUDGMENT

Tentative Ruling: Defendant's Motion to Vacate Default Judgment is denied.

Although Plaintiff titles his motion as a Motion to vacate default judgment, the crux of his motion is the court's error in applying the law. In effect, Plaintiff is asking this court to review its prior ruling, effectively a motion for reconsideration. An application for reconsideration of an order must be based on new or different facts, circumstances, or law. If new law provides the basis for the application, it does not include a later enacted statute that does not contain a retroactive application. CCP §1008(f). The declaration or affidavit in support of the motion for reconsideration must state what application was made originally, when and to what judicial officer the original application was made, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown. CCP §1008(a)–(b).

Under the following conditions, the losing party may make a motion before the same judge to reconsider and enter a different order (CCP § 1008(a)). Such motion must be brought before the *same judge* who made the order made *within 10 days* after service upon the party of *notice of entry* of the order; based on "*new or different facts, circumstances or law*" than those before the court at the time of the original *supported by declaration* stating the previous order, by which judge it was made, and the new or different facts, circumstances or law claimed to exist, and made and *decided before* entry of judgment.

Here, the court ruled on the Vexatious litigation motion on 3/9/26, and this motion – as considered by the court as a motion for reconsideration - was filed 5/21/26. Thus, this motion is untimely. Further, in this motion, Plaintiff does not provide any new facts, circumstances, or law that could not have reasonably presented at the time of the original hearing.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507438	LANTERO COONCE vs FCA US LLC	DEMURRER ON COMPLAINT
CVRI2507438	LANTERO COONCE vs FCA US LLC	MOTION TO STRIKE COMPLAINT

Tentative Ruling: Defendants have failed to satisfy their statutory obligation to meet and confer in person or by telephone in accordance with C.C.P. §§ 430.41(a) and 435.5(a). Nonetheless, Defendants FCA US, LLC and DCH Chrysler Dodge Jeep Ram Fiat of Temecula's Demurrer is overruled; the Motion to Strike is denied.

Pursuant to C.C.P. §§ 430.41(a) and 435.5(a), before filing a demurrer, the moving party must meet and confer in good faith with the plaintiff via phone or in person. Here, Defendants' counsel states that she sent one letter to Plaintiff's counsel regarding the demurrer, and Plaintiff's counsel did not reply. (See, Decl. of Erica Park at ¶¶ 2-3, Ex. B.) There is no evidence that defense counsel called Plaintiff's counsel to discuss the merits of the demurrer/motion, or even followed up on the email sent. C.C.P. §§ 430.41(a) and 435.5(a) very clearly require that parties meet and confer by telephone or in person, regardless of the prospects of an informal resolution, and based on the evidence presented, Defendants did not do this.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Kattleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A special demurrer lies where a pleading is uncertain, ambiguous and unintelligible. (CCP § 430.10(f).) Demurrers for uncertainty, however, are typically sustained only where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Uncertainty

While Defendants specially demur to the Complaint on the ground of uncertainty under C.C.P. § 430.10(f), they fail to explain how any of the claims are uncertain such that they cannot reasonably determine what issues must be admitted or denied, or what

claims are directed against them. (*Khoury, supra*, 14 Cal.App.4th 612, 616.) Accordingly, the demurrer is overruled on grounds of uncertainty.

Sufficiency of Pleadings

Defendants argue that none of the causes of action are sufficiently stated because they are based solely on conclusions. (Demurrer, pp. 10:12-11:28.) However, while a complaint must contain “a statement of the facts constituting the cause of action, in ordinary and concise language” to withstand a demurrer [C.C.P. § 425.10], the rules of pleading only require ultimate facts to be alleged; evidentiary facts supporting the allegation of ultimate fact need not be pleaded. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872; *McKelly v. Washington Mut., Inc.* (2006) 142 Cal.App.4th 1457, 1469.) “Ultimate facts” are those “facts” upon which liability depends, i.e., “the facts constituting the cause of action.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550). The distinction between “ultimate facts” and “conclusions” depends on whether the pleading gives adequate notice of the claims to be presented. (*Estate of Lind* (1989) 209 Cal.App.3d 1424, 1434.) Generally, a plaintiff need only plead facts necessary “to acquaint a defendant with the nature, source and extent of his claims.” (*Doe, supra*, 42 Cal.4th at 549-550; see also, *Estate of Lind* (1989) 209 Cal.App.3d 1424, 1434.)

In the present case, Plaintiff alleges: she purchased the Vehicle, on which FCA provided express and implied warranties; the Vehicle exhibited defects to the engine, transmission, and electrical systems within the warranty period, and those defects substantially impaired the use, value, and/or safety of the Vehicle; she presented the Vehicle to FCA’s authorized representative, but Defendants were unable to service or repair the Vehicle to conform to the warranties after a reasonable number of repair attempts; FCA failed to make sufficient service literature and replacement parts available to its authorized service and repair facilities to effect repairs during the express warranty period; DCH failed to use reasonable care in making repairs to the Vehicle; and FCA failed to replace the Vehicle or provide restitution as required. (Complaint at ¶¶ 7-9, 12-13, 29, 41, 47, 52, 62.)

“A plaintiff pursuing an action under the [Song Beverly] Act has the burden to prove that (1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use, value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element).” (*Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101.) Plaintiff’s allegations are sufficient to provide Defendants with notice of the nature and extent of her claims.

STATUTE OF LIMITATIONS

FCA next argues that the fraudulent concealment cause of action is barred by the statute of limitations. A demurrer based on a statute of limitations defense must clearly and affirmatively show that the claim is barred. (*Lockley v. Law Office of Cantrell,*

Green, Kekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 881.) “It is not sufficient that the complaint might be barred.” (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324.)

Fraud is subject to a 3-year statute of limitations from the date of discovery. (C.C.P. §338(d).) “The discovery rule provides that the accrual date of a cause of action is delayed until the plaintiff is aware of her injury and its negligent cause.” (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1109.) “A plaintiff is held to her actual knowledge as well as knowledge that could reasonably be discovered through investigation of sources open to her.” (*Ibid.*)

FCA argues the fraud claim is barred because it was brought more than three years after Plaintiff purchased the Vehicle. FCA conflates purchase with date of discovery. The fact that the defect(s) may have existed at the time of the sale does not mean that Plaintiff was aware of such fact. To the contrary, Plaintiff alleges that Defendant concealed the defects and blamed their symptoms on other issues, and she did not discover Defendant’s wrongful conduct until the Vehicle continued to exhibit symptoms of the defects following Defendant’s unsuccessful attempts to repair them. (FAC at ¶¶ 26-27, 37-38.) These allegations are sufficient for pleading purposes to show that the fraudulent concealment cause of action is not barred by the statute of limitations.

FRAUDULENT CONCEALMENT

The elements of a cause of action for fraud based on concealment are:

(1) The defendant must have concealed or suppressed a material fact; (2) the defendant must have been under a duty to disclose the fact to the plaintiff; (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage. (*Kaldenbach v. Mutual of Omaha Life Ins. Co.* (2009) 178 Cal.App.4th 830, 850, internal quotation marks omitted.)

Duty to Disclose

FCA first argues that Plaintiff’s fraudulent concealment cause of action fails because Plaintiff fails to adequately allege a duty by it to disclose.

To maintain a cause of action for fraud through nondisclosure or concealment of facts, there must be allegations demonstrating that the defendant was under a legal duty to disclose those facts. (*Los Angeles Memorial Coliseum Commission v. Insomniac, Inc.* (2015) 233 Cal.App.4th 803, 831.) There are four circumstances giving rise to a duty to disclose: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant has exclusive knowledge of material facts not known to plaintiff; (3) when defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336, internal quotations omitted.)

Plaintiff alleges that FCA had knowledge about the defects in the Vehicle that was not available to Plaintiff and/or the public and concealed that information from Plaintiff. (Complaint at ¶¶ 16-27, 66-67.) As FCA points out, failure to disclose material facts that are under the exclusive knowledge of one party and not the other is ordinarily not actionable fraud without a direct transactional relationship between the parties. (See, *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311.) Here, however, the Complaint sufficiently alleges that Plaintiff entered into a warranty contract with FCA, suggesting a contractual relationship. (Complaint at ¶¶ 7-8.) “A duty to disclose supporting fraud liability for...concealment may arise from the relationship between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.” (*Los Angeles Memorial Coliseum Commission v. Insomniac, Inc.*, *supra*, 233 Cal.App.4th at 831.) Therefore, for pleading purposes, Plaintiff has sufficiently alleged FCA’s duty to disclose.

Fraud Is Alleged with the Necessary Specificity

FCA also argues that fraud is not alleged with the requisite specificity. “Concealment is a species of fraud, and fraud must be pleaded with specificity...” (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 878 [internal quotation marks omitted].) But under California’s liberal pleading rules, “[l]ess particularity is required when it appears that defendant has superior knowledge of the facts, so long as the pleading gives notice of the issues sufficient to enable preparation of a defense.” (*Pointe Sand Diego Res. Com., L.P. v. Procopio, Cory, Hargreaves & Savitch, LLP* (2011) 195 Cal.App.4th 265, 278, citing *Okun v. Superior Court* (1981) 29 Cal.3d 442, 458.) Furthermore, as noted by one court, it is not practical to allege facts showing how, when, and by what means something did not happen. (*Alfaro v. Community Housing Improvement System Planning Assn.* (2009) 171 Cal.App.4th 1356, 1384.)

Here, Plaintiffs allege that Defendant knew about the defects in the Vehicle, and obtained this knowledge from sources not available to the public, such as pre-production testing and data analysis, as well as testing done in response to early complaints about such defects. (FAC at ¶¶ 16-27.) This is sufficient to show, for pleading purposes, that FCA has superior knowledge of the transmission defects and other facts relevant to the claim for fraud.

Also, in light of the decision in *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, Plaintiff appears to have met the specificity requirement for fraud. In *Dhital*, the court held that the fraud claim in the complaint was pleaded with the requisite specificity by alleging (1) there were transmission defects and the manufacturer knew of the defects and hazards they posed; (2) the manufacturer had exclusive knowledge of the defects but intentionally concealed and failed to disclose the information; (3) the manufacturer intended to deceive plaintiffs by concealing known transmission problems; (4) the plaintiffs would not have purchased the car had they known of the defect; and (5) the plaintiffs suffered damages in the form of money paid to purchase the car. (*Dhital*, *supra*, 84 Cal.App.5th at 843.) To support their claim, the plaintiffs in *Dhital* specifically alleged they entered into a warranty contract with Nissan, thereby creating the transactional relationship; the transmissions at issue were defective and caused

problems such as hesitation, shaking, jerking, and failing to function; and that Nissan was aware of these defects through data taken from premarket testing and prior consumer complaints. (*Ibid.*) These allegations are virtually identical to those set forth in the Complaint, as outlined above. (See, Complaint at ¶¶ 16-27.)

In addition, Plaintiffs herein allege that they would not have purchased the Vehicle had they known about the defects in it; they suffered damages in the form of money paid to purchase the car; and they are seeking restitution as a form of remedy under the Song-Beverly Act. (Complaint at ¶¶ 24, 35, 42, 48, 52, 58, 69, 71, Prayer, b.) This is sufficient for the final two elements. (See, *Dhital, supra*, 84 Cal.App.5th at 843; *cf. Engalla v. Permanente Med. Group, Inc.* (1997) 15 Cal.4th 951, 979 [a defrauded party seeking only rescission need not show pecuniary damages].) Therefore, Plaintiff has sufficiently alleged the elements of concealment, and the demurrer should be overruled.

MOTION TO STRIKE

The court may, upon a motion made pursuant to C.C.P. section 435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(C.C.P. § 436.)

On a motion to strike, as with a demurrer, the court reads the allegations of the complaint as a whole, and accepts the facts alleged as true. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) A motion to strike is the proper vehicle to attack a punitive damages claim where the facts alleged do not rise to the level of fraud, malice or oppression. (C.C.P. §§ 435-436; *Turman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.) If the defect in the pleading is correctible, leave to amend should be granted. (*Grieves v. Superior Court*, 157 Cal.App.3d 159, 168.) FCA here moves to strike Plaintiff's claim for punitive damages. To support a demand for punitive damages, a plaintiff must plead and prove facts demonstrating malice, oppression, or fraud as defined in *Civil Code* section 3294(c). As defined in the statute, malice is "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others," while oppression is defined as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294(c)(1)-(2).) Despicable conduct is conduct that is base, vile or contemptible. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) A properly pleaded fraud claim will itself support recovery of punitive damages. No allegations of "malice" or intent to injure plaintiff are required, because fraud is an alternative basis for recovery (i.e., "oppression, fraud or malice"). (*Stevens v. Sup. Ct. (St. Francis Med. Ctr.)* (1986) 180 Cal.App.3d 605, 610).

While claims under the Song-Beverly Act do not support both a civil penalty and punitive damages [*Troensegaard v. Silvercrest Indus.* (1985) 175 Cal.App.3d 218, 226-228], punitive damages are available for fraud claims despite the fact that there is a Song-Beverly claim. (*Anderson v. Ford Motor Co.* (2022) 74 Cal.App.5th 946, 971-972.) Since Plaintiff did not actually assert her request for punitive damages in their Song-Beverly claims (it is only referenced in the Prayer), and her fraud claim is sufficiently pled, there is no basis to strike the claim for punitive damages.